

An aerial photograph of the Elysée Palace in Paris, France. A long red carpet runs down the center of the courtyard, flanked by rows of marching band members in uniform. The palace building is a large, classical structure with many windows and a central entrance. A French flag flies on a tall pole in front of the building.

Introduction to the Legal System- Module II

Semi-Presidentialism

First Dispositional Property

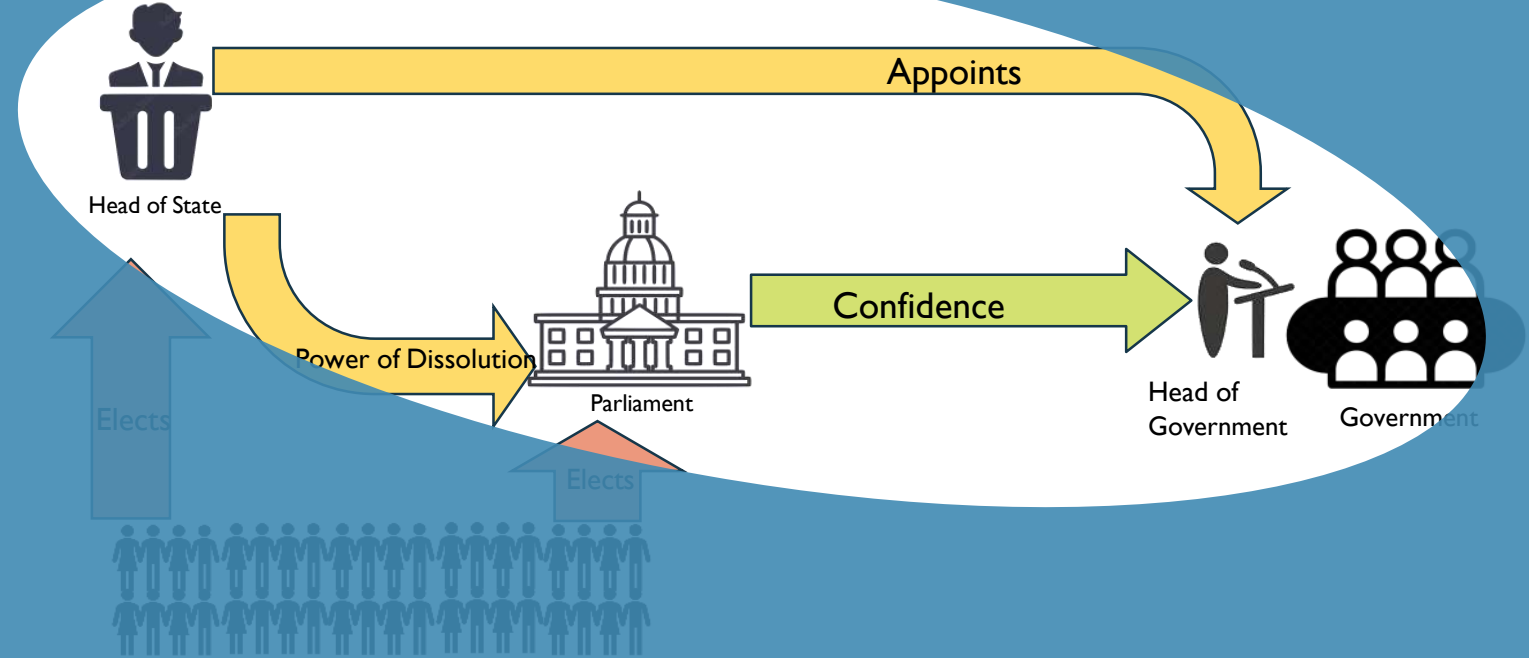
Do we have both a
Head of State and
a Head of
Government?

Yes, they both exercise a measure of executive power

– A Bicephalous Executive system

A system featuring a dual leadership structure within the executive branch of government.

- Purpose: Balances power and responsibilities between two distinct roles to prevent concentration of power.

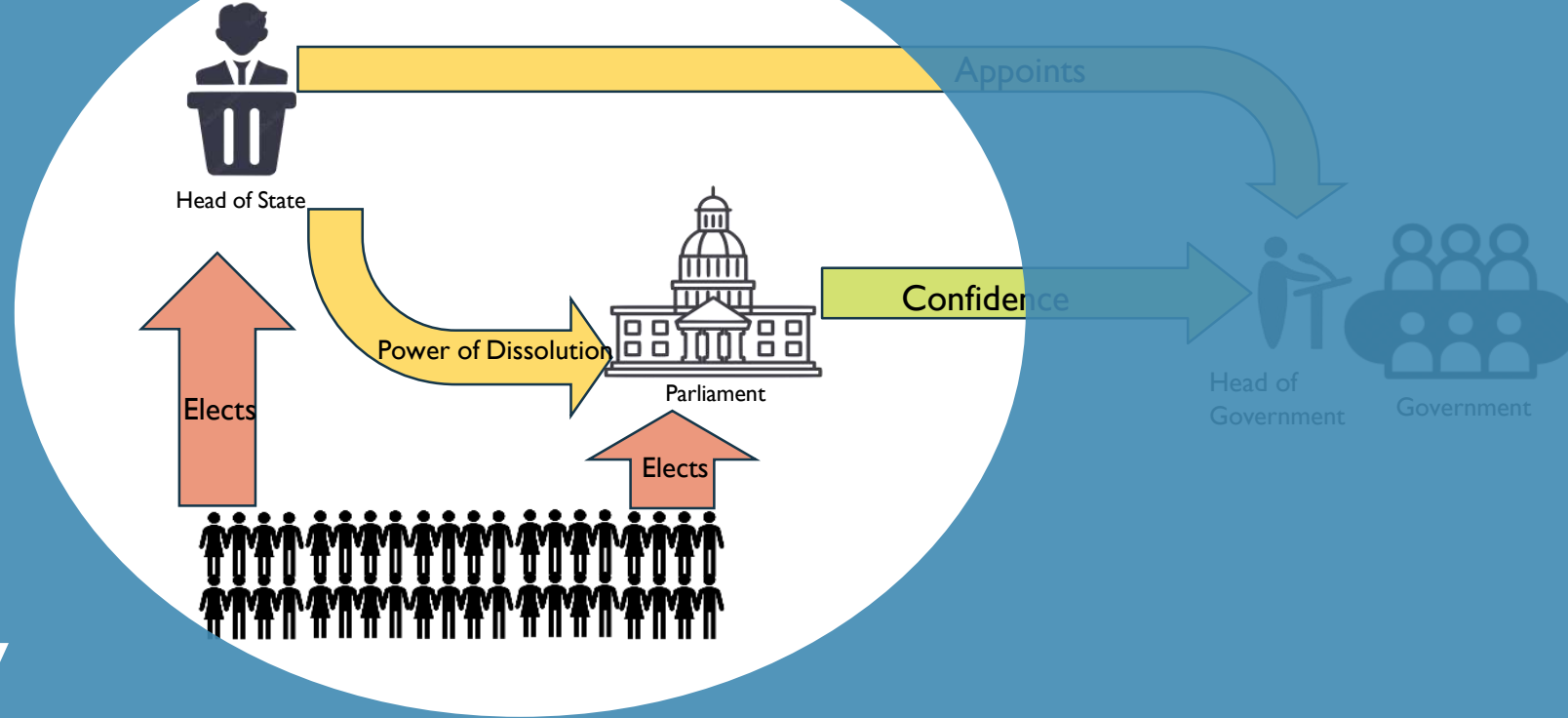


Second Dispositional Property

Are the Head of State
and the Head of
Government Popularly
Elected?

**The HoS is popularly
elected.**

In France not only popularly but
directly elected

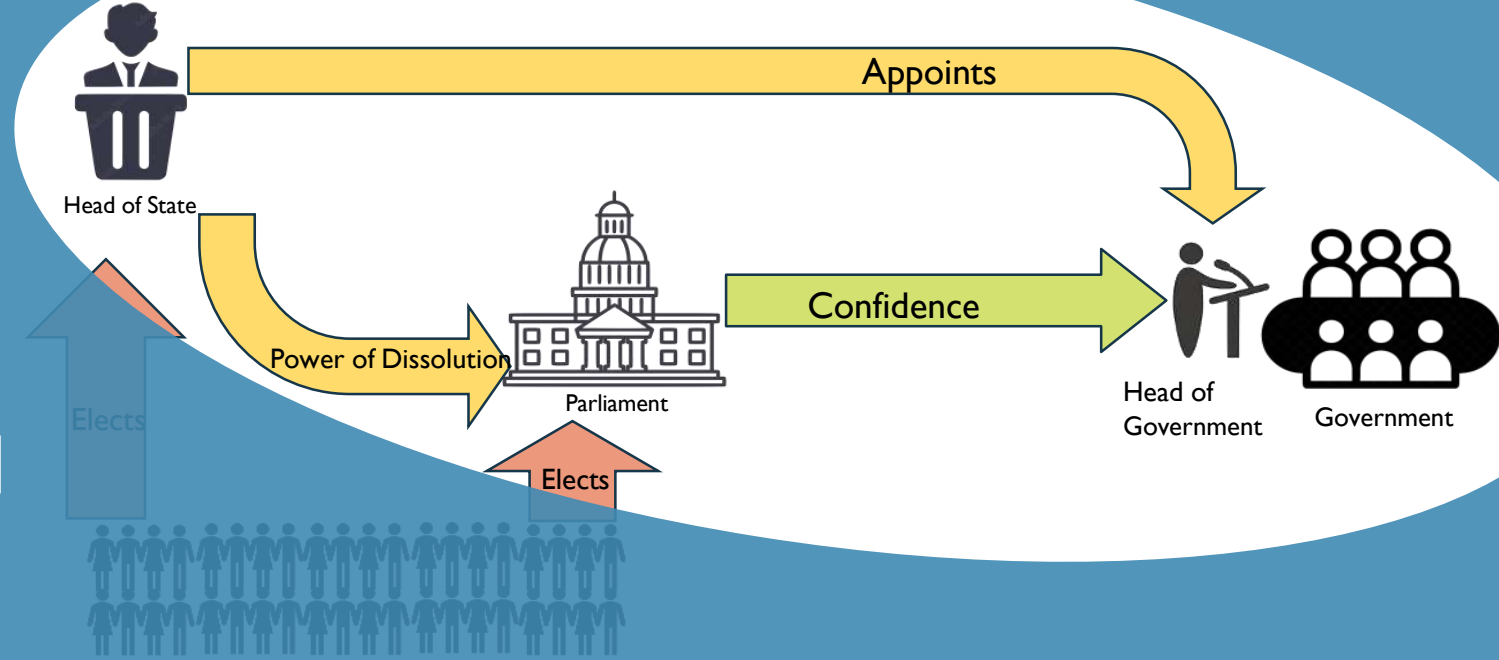


**The HoG is not popularly
elected**

S/he is appointed by the HoS and needs the
confidence of the parliament

Third Dispositional Property

Do the Head of State and
the Head of Government
Serve for a fixed term?



The HoS serves for a fixed term

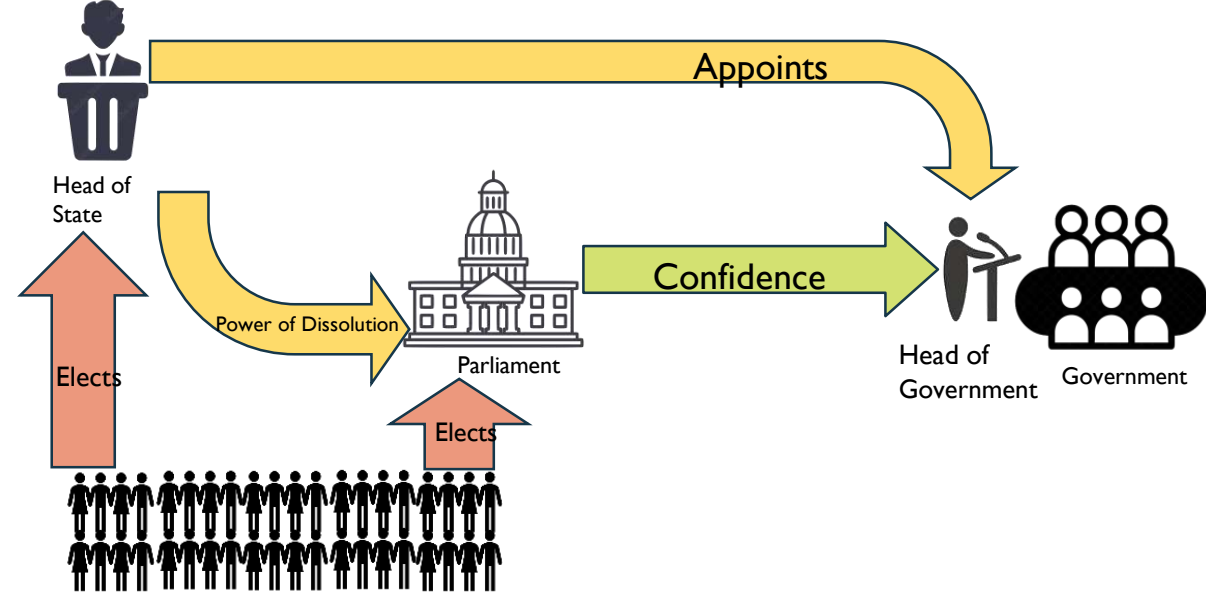
E.G. 5 years in France

Since 2008 there is a 2-term limit.

**The HoG does not serve for a
fixed term**

There is a relationship of confidence.

Key Features of the System



Double Popular Legitimation

Directly elected fixed- term President

Prime Minister and Cabinet collectively responsible to the Parliament – and in certain countries also to the President.

Origin

Model theorized as **semi-presidential** by Maurice Duverger.

- *[a] political regime is considered as semi-presidential if the constitution which established it combines three elements: (1) the president of the republic is elected by universal suffrage; (2) he possesses quite considerable powers; (3) he has opposite him, however, a prime minister and ministers who possess executive and governmental power and can stay in office only if the parliament does not show its opposition to them (Duverger, 1980, p. 166).*
- Already existed in Weimar Germany (1919), Finland (1919), Austria (1929), Ireland (1937) and Iceland (1944) but it had never been described as such.
- It was introduced in Portugal (1975) and other countries after the breakup of the Soviet Union – including Poland and Russia.

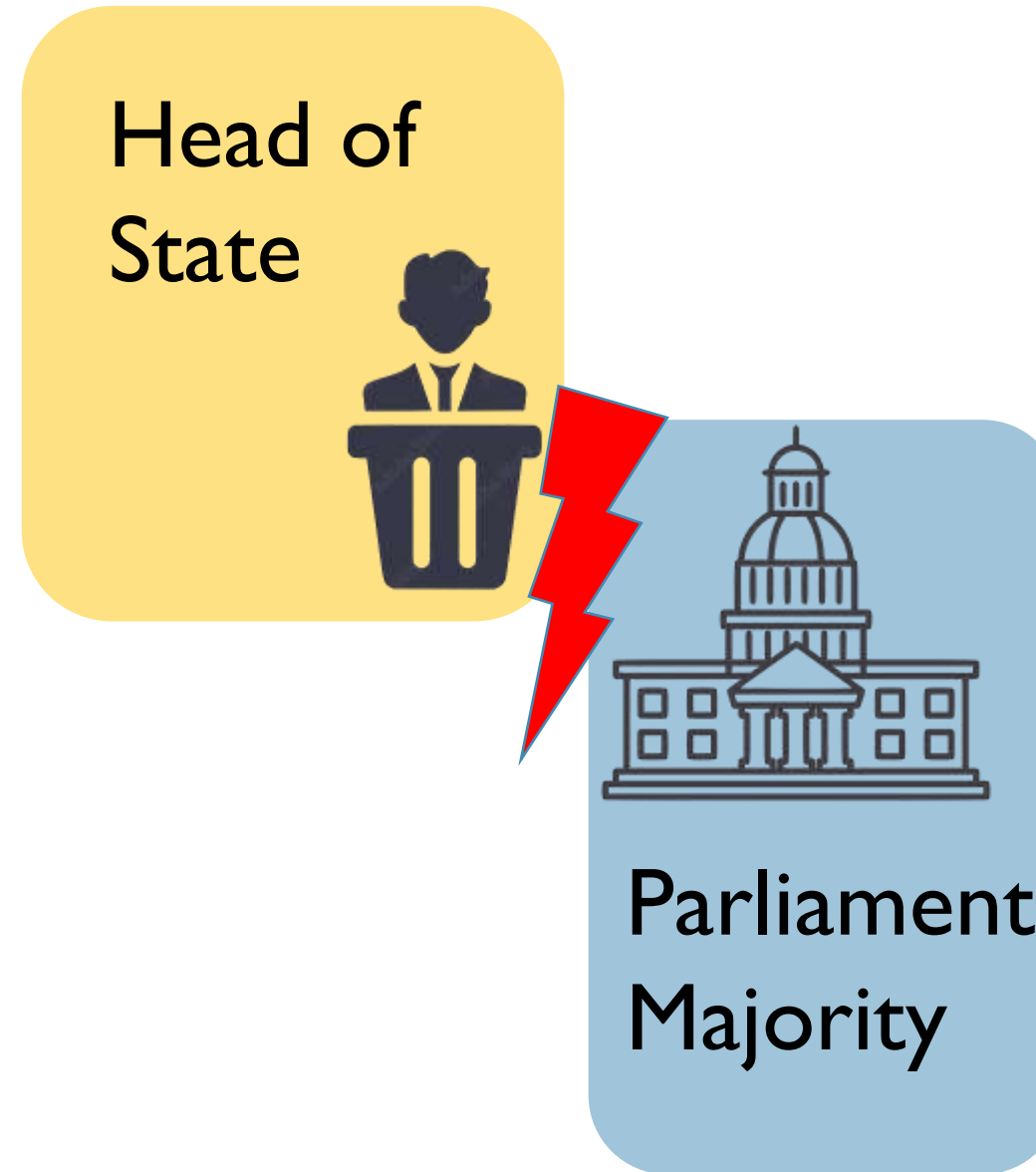
Africa	Americas	Asia/Middle East	Central and Eastern Europe	Former USSR	Western Europe
Angola, Benin, B.Faso, Gabon, Madagascar, Mali, Namibia, Niger, Togo	Dominican Republic, Guyana, Haiti	Lebanon, Maldives, Mongolia, S.Korea, Sri Lanka	Bulgaria, Croatia, Macedonia, Poland, Romania, Slovenia	Armenia, Azerbaijan, Belarus, Georgia, Kazakstan, Kyrgyzstan, Lithuania, Moldova, Russia, Ukraine, Uzbekistan	Austria, Finland, France, Iceland, Ireland, Portugal

France

- Fifth Republic –Constitution of 1958
- Amendments of 1962 - Article 6 was changed to allow for the direct election of the president by universal suffrage -semi-presidential regime
- Executive dyarchy/hierarchical dyarchy
- The Prime Minister is charged with guiding and coordinating all matters which concern the immediate governance of the country,
- Whereas the President is given the task of overseeing and protecting the long-term interests of the regime.

Cohabitation

- Situation arising in semi-presidential executives when the **President** elect and the **majority** in Parliament belong to different parties.
- **Why can this happen?**
 - I. Different voting behavior for President and Parliament
 - II. Non-concurrent terms for President and Parliament



Cohabitation (France)

- In the past cohabitation happened more frequently as the election of the President of the Republic and the National Assembly did not coincide – the President's term was 7 years; parliament's 5.
- In 2000, Constitutional reform reduced the term to 5 years in order to minimize risk of cohabitation.
- Periods of Cohabitation
 - 1986-88 Mitterand; Chirac
 - 1992-95 Mitterand; Balladur
 - 1997-02 Chirac; Jospin

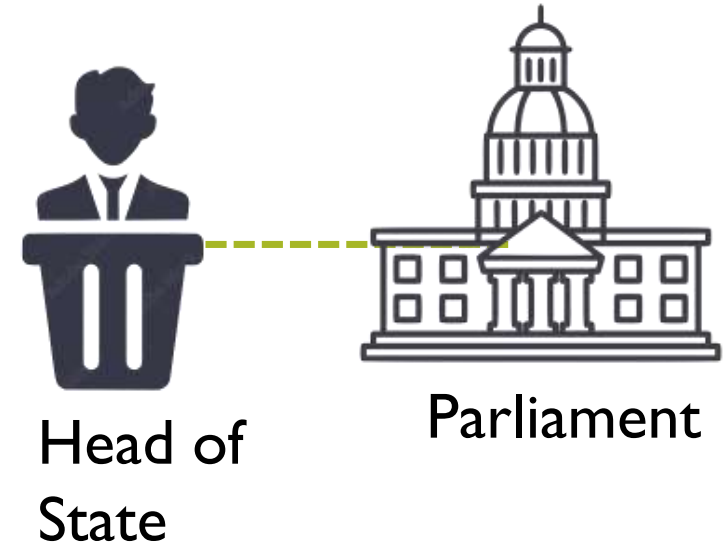


Cohabitation (France)

- During Cohabitation, the French system works more like a **parliamentary executive**
 - The President is forced to appoint a Prime Minister of a different political camp.
 - President retains power only on defense and foreign policy
 - Most executive power is exercised by the Prime Minister

Relationship President/Parliament

- **Dissolution** of the Parliament
 - Art. 12 French Const.: “the President of the Republic may, after consulting the Prime Minister and the Presidents of the assemblies, declare the National Assembly dissolved”
 - President cannot exercise this power of dissolution in the year following the parliamentary election.
- **Possibility of the US-like impeachment of the President**
 - Introduced with reform of 2014- Article 68 of the French Constitution



Relationship President/Prime Minister

- In all forms of Semi-Presidentialism the President appoints the Prime Minister but
- In some countries the President can also dismiss the Prime Minister having support of the Parliament – **president parliamentarism** – e.g. **Russia**
 - Prime Minister and Cabinet responsible to both Parliament and the President
- In other countries, the President cannot dismiss the Prime Minister – **premier presidentialism** – e.g. **France**
 - Prime Minister and Cabinet responsible only to Parliament



Head of
State



Head of
Government

Semi-presidentialism (sub-types)



Head of
Government

Prevalent Prime Minister

Semi-presidential systems where the Prime-Minister prevails.



Diarchy

Semi-presidential systems which are based on a clear separation of competences between the Prime Minister and his government, on one hand, and the President of the Republic, on the other.



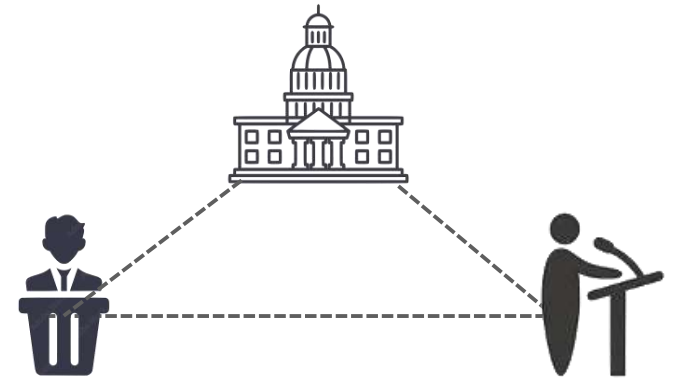
Head of State

Prevalent President

Semi-presidential systems where the President plays a central role



Problems of Semi-Presidentialism



- I. Coordination Problems
- II. Dual Legitimacy problem
- III. Accumulation of Power in one Institution – the President
 - a. **N.B.** Under certain forms of semi- Presidentialism, the President has immense powers (more than in a Presidential Executive)
 - b. The President combines **executive power** and the power to **dissolve the chambers**
 - a) **Very dangerous where there are authoritarian tendencies.**

Breaking presidential term limits

94

Presidents from across the world increased the time of their presidential terms in one way or the other, during the period 1945–2017

4.8

Years

Among all presidents between 1960 and 2010, the average time spent in office for those politicians who entered the presidency in a **democracy**



7.2

Years

In a **non-democracy**

China-Xi Jinping
got rid of 2-term
limit

Egypt's Abdel Fattah el-Sisi – enacted constitutional changes allowing him to remain in power until 2030.



‘Zeroing’ in other countries

- 2000 Kazakhstan
- 2004 Belarus
- 2009 Azerbaijan



Example of Bolivia:

- 1967 constitution: presidents can serve a maximum of two terms in office
- 2009 constitution: no consecutive terms, but limited to two terms
- 2016 referendum (rejected by voters): proposed dropping term limits
- 2017 constitutional court ruling: **Scraps term limits**

WHAT TYPES OF EVASION STRATEGIES DO LEADERS EMPLOY?

Evasion Strategy	Description	Frequency	Percent	Success Percent
Amendment	Amend the constitution to eliminate term limits or extend number of terms	40	63%	60%
Blank slate	Create entirely new constitution that resets term count	5	8%	100%
Courts	Rely on legal theory or the courts to reinterpret term limits	6	15%	83%
Placeholder President	Allow an associate to become incumbent, but still maintain control	6	15%	33%
Delay elections	Delay holding new elections when term is up	3	5%	100%
Multiple strategies	Any combination of the strategies listed above	9	14%	100%

Directorial executive: Switzerland



Head of
Government
and of State

Government

Appoints



Parliament

NO relationship of confidence

Elects



Neo-parliamentary Executive

